

STATE OF NEW YORK

5440--A

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sen. LIU -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to prohibiting leaded aviation gasoline

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Article 19 of the environmental conservation law is amended by adding a new title 13 to read as follows:

TITLE 13

LEADED AVIATION GASOLINE

Section 19-1301. Definitions.

19-1303. Leaded aviation gasoline prohibited.

19-1305. Federal grant exemption.

§ 19-1301. Definitions.

As used in this section, the following terms shall have the following meanings:

1. "aviation retail establishment" means any public or private entity that sells aviation gasoline, or offers or otherwise makes available aviation gasoline, to a customer, including other businesses or government entities, for use in this state.

2. "leaded aviation gasoline" shall have the same meaning as in section 47017(22) of Title 49 of the United States code.

§ 19-1303. Leaded aviation gasoline prohibited.

An airport operator or aviation retail establishment shall not sell, distribute, or otherwise make available leaded aviation gasoline to consumers on or after January first, two thousand thirty-one, in compliance with section 47107 of Title 49 of the United States code.

§ 19-1305. Federal grant exemption.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD07501-02-5

1 If a provision of this title conflicts with a federal grant assurance
2 in effect on or before December thirty-first, two thousand twenty-four,
3 such provision shall not apply to an airport operator subject to such
4 grant assurance until the federal grant assurance expires.

5 § 2. Severability. If any clause, sentence, paragraph, subdivision,
6 section or part of this act shall be adjudged by any court of competent
7 jurisdiction to be invalid, such judgment shall not affect, impair, or
8 invalidate the remainder thereof, but shall be confined in its operation
9 to the clause, sentence, paragraph, subdivision, section or part thereof
10 directly involved in the controversy in which such judgment shall have
11 been rendered. It is hereby declared to be the intent of the legislature
12 that this act would have been enacted even if such invalid provisions
13 had not been included herein.

14 § 3. This act shall take effect immediately.